

Sau. Pranali W/O Rohit Wanjari vs Rohit @ Lakhan S/O Ashokrao Wanjari on 1 March, 2019

1

929-J-MCA-483-18.odt

IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR

MISC. CIVIL APPLICATION NO. 483 OF 2018

Sau. Pranali w/o Rohit Wanjari,
Aged about : 28 years, Occ. Household,
R/o C/o Arjunrao Dhoble, 182,
Dangri Ward (Near Market),
Hinganghat, Tahsil Hinganghat,
Dist. Wardha 442301.

... APPLICANT

VERSUS

Rohit @ Lakhan s/o Ashokrao Wanjari,
Aged about : 30 years, Occ. Service,
R/o Flat No.302, Ramkrishna Nagari,
Tulip Apartment, New Narsala Road,
Near Bharat Gas Godown,
Nagpur - 440034.

... NON-APPLICANT

Shri H. N. Bhondge, Advocate for applicant.
Shri S. B. Solat, Advocate for Non-Applicant.

CORAM:- ARUN D. UPADHYE, J.
DATED : 01/03/2019.

ORAL JUDGMENT :

1. Heard. Admit. The matter is taken up for final hearing with the consent of the learned counsel for the parties.

2. Shri H. N. Bhondge, learned counsel for the applicant has submitted that the non-applicant has filed Petition No.A-192/2018 under Section 13(1)(i-a) of the Hindu Marriage Act for grant of divorce before the Family Court, Nagpur. He further submitted that the applicant has also filed H.M.P. 2 929-J-MCA-483-18.odt No.51/2018 for restitution of conjugal rights and pending before the Civil Judge, Senior Division, Hinganghat. He submitted that applicant has also filed proceedings bearing Misc. Cri. Application No.39/2018 under Section 125 of the Cr. P. C. for maintenance and pending before the Judicial Magistrate, First Class, Hinganghat and according to him, the applicant is residing with her parents at Hinganghat and due to financial constraints, she is unable to attend the proceedings at Family Court, Nagpur. The non-applicant is serving in private company and earning Rs.50,000/- p.m. There is no inconvenience for him to attend the proceedings at Hinganghat and already, two proceedings are filed by the applicant at Hinganghat. Therefore, the application be

allowed.

3. The learned counsel for the non-applicant has submitted that the applicant was serving prior to marriage at various places i.e. Bangalore, Gujarat, Rajasthan, etc. and was living independently. Therefore, applicant can attend the proceedings at Nagpur and there is no inconvenience for her to attend the proceedings. He also submitted that as per the order passed by this Court, he has deposited the litigation expenses of Rs.15,000/- in this Court and ready to pay the litigation expenses 3 929-J-MCA-483-18.odt to wife, if she attends the proceedings at Nagpur. He also submitted that as per the provisions of Section 21-A of the Hindu Marriage Act, the subsequent proceedings to be transferred to the Court where the first proceeding is pending under the Hindu Marriage Act and the husband has filed divorce petition at Nagpur which is earlier proceeding. He submitted that there is no financial constraint for the applicant, as she is well educated. Lastly, he submitted that the application be rejected. According to him, the proceeding subsequently filed by the applicant is only to harass the non-applicant. Therefore, the application be rejected.

4. After hearing both the sides, I have perused the application filed under Section 24 of the Code of Civil Procedure for transfer of proceedings filed by the husband as well as reply to the application filed by the husband. I also perused the documents placed on record. On perusal of the same, it appears that the marriage of applicant with non-applicant was solemnized on 12/11/2016 at Hinganghat, Dist. Wardha. It further appears that both the parties have filed proceedings against each other and are pending before the different Courts.

4 929-J-MCA-483-18.odt

5. The non-applicant-husband has filed proceedings under Section 13(1)(i-a) of the Hindu Marriage Act for grant of divorce and pending before the Family Court, Nagpur and same is filed on 15/02/2018. It further appears that thereafter, applicant- wife has filed Petition i.e. H.M.P.No.51/2018 on 19/03/2018 under Section 9 of the Hindu Marriage Act for restitution of conjugal rights before the Civil Judge, Senior Division, Hinganghat. The wife has also filed proceedings i.e. Misc. Cri. Application No.39/2018 under Section 125 of the Cr. P. C. for maintenance and pending before the Judicial Magistrate, First Class, Hinganghat. It further appears that criminal case under Section 498-A is pending before the Judicial Magistrate, First Class, Nagpur, initiated on the police report. It further appears that this Court by an order dated 24/10/2018 directed the non- applicant to deposit Rs.15,000/- before this Court towards the litigation expenses of the present proceedings and the non- applicant has deposited the amount.

6. Considering the above facts and circumstances of the case, I am of the considered view that the applicant - wife has made out a case for transfer of Petition No.A-192/2018 filed under Section 13(1)(i-a) of the Hindu Marriage Act, filed by non-

5 929-J-MCA-483-18.odt applicant pending before the Family Court, Nagpur to the Court of Civil Judge, Senior Division, Hinganghat.

7. The submission put-forth on behalf of the non- applicant that as per the provisions of Section 21-A of the Hindu Marriage Act, subsequent petition has to be transferred to the Court where first proceeding is pending, cannot be accepted.

8. From perusal of the provisions of Section 21-A, I am of the considered view that the said provision is not made applicable in the present case. As per the said provisions, the petition must have filed under Section 10 of the Hindu Marriage Act for judicial separation or for divorce and if subsequent petition is filed under the said provisions, subsequent proceeding has to be transferred to the first Court. In the case at hand, the first proceeding is filed by the husband under Section 13(1)(i-a) of the Hindu Marriage Act for divorce. However, the applicant-wife has filed proceedings under Section 9 of the Hindu Marriage Act for restitution of conjugal rights. Therefore, the submission put-forth on behalf of the applicant, cannot be accepted and provisions of Section 21-A of the Hindu Marriage Act are not made applicable.

9. The next submission of the learned counsel for the non-applicant that he has paid amount of Rs.15,000/- towards the 6 929-J-MCA-483-18.odt litigation charges and he is ready to pay litigation charges to the wife, if she attends the proceedings at Nagpur. So far as amount of Rs.15,000/- is concerned, this Court has specifically stated in the order that said amount is towards the litigation expenses of the present proceedings. As regards the submission of learned counsel for the non-applicant that he is ready to pay expenses for attending the proceedings that, itself is not sufficient to reject the application. The applicant - wife is unable to attend the proceedings at Family Court, Nagpur. Moreover, two proceedings are pending before the Court at Hinganghat. No prejudice will cause to the non-applicant, if proceeding at Nagpur is transferred to Court at Hinganghat. The convenience of wife must be looked into. The submission of learned counsel for the non-applicant that the Court at Tahasil place is already burdened and therefore, the matter may not be transferred from Nagpur to Hinganghat, cannot be accepted.

10. After considering the submissions of both the sides and after perusal of the documents placed on record, application filed by the applicant deserves to be allowed. Hence, I pass the following order.

7

929-J-MCA-483-18.odt

ORDER

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| I. | The application is allowed. |
| II. | Proceedings bearing Petition No.A-192/2018 [Rohit |

s/o Ashokrao Wanjari Vrs. Sau. Pranali Rohit Wanjari] pending before the Family Court, Nagpur stands transferred to the Civil Judge, Senior Division, Hinganghat for disposal, in accordance with law.

III) The non-applicant is entitled for withdrawal of amount of Rs.15,000/- with accrued interest.

IV) Misc. Civil Application is disposed of accordingly.

V) No order as to costs.

JUDGE

Choulwar